

24STCV13135 24STCV13135

County: los-angeles
Division: Civil Law and Motion
Department: 731
Hearing date: 2026-09-15
Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES
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Case Number: 24STCV13135 Hearing Date: September 15, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

LUIS ZAMAYOA, an individual,

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA,
INC., a New Jersey Corporation, and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 24STCV13135

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION FOR ATTORNEYS' FEES

Dept. 731

September 15, 2026

8:30 a.m.

Matter No. 14

Moving Party: Defendant, Volkswagen Group of America, Inc.

Opposing Party: Plaintiff, Luiz Zamayoa

Notice: OK

Background Facts

Plaintiff Luis Zamayoa brought this
action suing Defendants Volkswagen Group of America, Inc. and Does 1 through 10
pursuant to a May 24, 2024, Complaint alleging statutory claims arising from

the Song-Beverly Warranty Consumer Act ("SBA").

On December 11, 2025, Plaintiff
filed a notice of conditional settlement in this action, which provided an
estimated dismissal date of March 11, 202[6].

Now before the Court is Plaintiff's
opposed motion for attorneys' fees in the amount of \$42,173.75 as the
prevailing party in an SBA action.

Motion for Attorneys'
Fees and Costs and Expenses

a. Legal
Standard

A prevailing party is entitled to
recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4),
(b).) Attorney's fees are also recoverable as costs when authorized by
contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)
Separately, a prevailing buyer in a Song-Beverly Act action is entitled to
recover their attorney's fees and costs under the Act's express terms. (Civ.
Code, § 1794, subd. (d); see *Goglin v. BMW of North America, LLC* (2016)
4 Cal.App.5th 462, 464, 471.)

The Court begins this inquiry "with
the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the
reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084,
1095 (PLCM Group).) From there, the "lodestar figure may then be
adjusted [according to a multiplier enhancement] based on consideration of
factors specific to the case, in order to fix the fee at the fair market value
for the legal services provided." (Ibid.) Relevant multiplier factors
include "(1) the novelty and difficulty of the questions involved, (2) the
skill displayed in presenting them, (3) the extent to which the nature of the
litigation precluded other employment by the attorneys, [and] (4) the
contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th
1122, 1132.)

Discussion

As a prevailing buyer in an SBA

action, Plaintiff seeks an award of \$42,173.75, consisting of (1) \$30,539.00 in attorneys' fees for Plaintiff's counsel, (2) a 1.25 multiplier enhancement on the attorneys' fees for \$7,634.75, and (3) an additional \$4,000.00 for Plaintiff's counsel to review Defendant's opposition, draft a reply, and attend the hearing on this motion. (See, e.g., Motion, ii:7-10.) Plaintiff's motion does not address costs.

When a voluminous fee application

is made, the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 40, citing *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.) A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744.) But the court must clearly explain its reasons for choosing the particular negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Here, the Court agrees that many of

the hours presented by Plaintiff are either not recoverable or inflated. (See Opposition, pp. 7-9.) Simply, the Court determines that the hours spent on this action do not reflect the hours that a reasonable practitioner should have, at the requested rates, expended in litigating this action to settlement, particularly where, as highlighted in the opposition, Plaintiff's counsel billed about 17.9 additional hours after receiving the 998 offer that concluded this litigation. (See Opposition, pp. 8-9; see also Motion, Jacobson Decl., ¶ 101, Ex. 40 [verified time records].)

However, the Court does not agree

that a negative multiplier to reduce the requested fees is appropriate, as advocated by Volkswagen. (Opposition, p. 12.) Instead, the Court makes a 33% reduction to the total requested fees of \$30,539.00, which more appropriately reflects reasonable recovery for the efforts expended on this action, yielding \$20,461.13. (See Motion, Jacobson Decl., ¶ 101, Ex. 40 [verified time records].)

The Court adds an additional

\$2,500.00 to be reasonably spent on the opposition, reply, and hearing work for this motion by Plaintiff's counsel.

The total award of fees is thus
\$20,461.13 plus \$2,500.00, yielding a final lodestar award of \$22,961.13.

The Court does not otherwise rule
on reasonable rates as the above determination concludes the Court's lodestar discussion.

Separately, the Court finds
insufficient grounds for a multiplier here. While the Court can accept that Plaintiff's counsel works on contingency, the questions involved are customary in SBA actions and the skills displayed here are likewise of customary quality.

c. Conclusion

Plaintiff Luiz Zamayoa's motion for
attorneys' fees is GRANTED, in part, in the amount of \$22,961.13.

Plaintiff Luiz Zamayoa is ordered
to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 15, 2026 _____

MARK C. KIM

Judge of the
Superior Court